

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada (I)	Team: Intake	CCRB Case #: 201403367	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/08/2014 6:00 PM	Location of Incident: § 87(2)(b)	Precinct: 67	18 Mo. SOL 10/8/2015	EO SOL 10/8/2015	
Date/Time CV Reported Wed, 04/09/2014 11:55 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/09/2014 11:55 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Dwyer	08952	953834	PBBS
2. POM Kyle Black	04135	953686	PBBS
3. SGT Mervin Bennett	00255	920019	PBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Warren Lau	12575	954048	PBBS

Officer(s)	Allegation	Investigator Recommendation
A.POM Kyle Black	Force: PO Kyle Black used physical force against § 87(2)(b)	§ 87(2)(b)
B.POM Kevin Dwyer	Force: PO Kevin Dwyer used physical force against § 87(2)(b)	§ 87(2)(b)
C.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett threatened § 87(2)(b) with the use of force.	§ 87(2)(b)

Case Summary

On April 9, 2014, § 87(2)(b) filed this complaint with the CCRB via telephone.

During his intake call, § 87(2)(b) scheduled an interview for April 18, 2014, which he missed without providing advanced notice. Between April 21, 2014 and April 25, 2014, three phone calls were made to § 87(2)(b) and voicemails were left on each of these calls. On April 23, 2014, an e-mail was sent to § 87(2)(b) which he replied to, stating he would call the investigator to reschedule. On April 25, 2014, § 87(2)(b) called the investigator and rescheduled his interview for April 29, 2014, which he missed without providing advanced notice. Letters were sent to § 87(2)(b) on April 21, 2014 and April 29, 2014, which were not returned by the United States Postal Service. A search of the NYC Department of Correction database indicated that § 87(2)(b) is not incarcerated. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date